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PART I : SECTION (I) — GENERAL

Government Notifications

L.D.B. 24/51(iv)

THE MOTOR TRAFFIC ACT (CHAPTER 203)

REGULATIONS made by the Minister of Transport and Civil Aviation under Section 237 of the Motor Traffic Act (Chapter 203) read with subsection (2) of Section 5 and Section 19 of the aforesaid Act.

NIMAL SIRIPALA DE SILVA,
Minister of Transport and Civil Aviation.

Colombo,
04th January 2017.

Regulations

1. These regulations may be cited as the Motor Traffic (Motor Tricycle) Regulations, No. 01 of 2017.

2. (1) Every owner of a motor tricycle who uses such motor tricycle for the purpose of transportation of persons for hire or otherwise shall ensure that the off side (right side) opening to the passenger's compartment of the motor tricycle is partially or fully closed permanently to prevent any entry or exit by a passenger.

(2) (a) A driver of a motor tricycle shall not allow any passenger to enter into or exit from the motor tricycle by scaling over the off side (right side) of the motor tricycle.

(b) No person shall enter into or exit from the motor tricycle by scaling over the off side (right side) of the motor tricycle.

(3) For the purpose of this regulation, two children under age of Twelve years shall be counted as One passenger for the purpose of the number of passengers.



3. An owner of a motor tricycle shall ensure that-

- (a) the support of all seats of a motor tricycle shall be firmed in position and at least 382 and 250 millimeters measured in a straight line along the front of each seat shall be allowed for each adult and child respectively ;
- (b) the shortest distance between the front edge of the driver seat of a motor tricycle and vertical plane passing through the nearest edge of the panel shall not be less than 300 millimeters ;
- (c) the shortest distance between the front edge of the passenger seats of a motor tricycle and vertical plane passing through nearest point of the back rest of a front seat shall not be less than 230 millimeters.
- (d) the minimum clear distance between the back rest of any consecutive two seats fitted on the motor tricycle shall not be less than 660 millimeters ; and
- (e) the seats facing each other shall not be fitted to a motor tricycle.

4. No person other than the driver of the motor tricycle shall be carried in the driver's compartment or on the driver's seat.

5. The speed limit of the motor tricycle shall be subject to the provisions of the Motor Traffic (Speed Limits) Regulations, No. 01 of 2012 published in the *Gazette Extraordinary* No. 1763/26 of June 22, 2012.

6. The owner or driver of a motor tricycle shall not permit any person to distribute any advertisement, leaflet or hand bill while such motor tricycle is in motion on the road.

7. The driver of a motor tricycle which is in motion or parking shall not use or shall not cause to use any instrument or equipment emanating sound so as to disturb or annoy other road users. The sound shall be regulated to ensure that it is confined within the motor tricycle and intended for the hearing only of the occupation therein.

8 (1) An owner or driver of the motor tricycle shall ensure that -

- (a) a speedometer is fitted to the motor tricycle in such a position to indicate clearly at all times to the driver of the motor tricycle the speed at which the motor tricycle is driven ;
- (b) electrically or electronically operated windscreen wiper is fitted in such a manner that the driver of the motor tricycle could obtain an unobstructed view to the front of the motor tricycle.
- (c) every motor tricycle fitted with pneumatic tyres shall, while the motor tricycle is used on a road carry at least one spare wheel and other devices so that it is capable of being fitted quickly to a wheel or axle and every such motor tricycle fitted with pneumatic tyres of two different sizes shall in like manner, carry at least one spare inflated tyre of each size ; and
- (d) cover is fitted to protect the driver and the passengers from weather conditions.

(2) An owner of the motor tricycle shall ensure that the following components are fitted to the motor tricycle and are in good and working condition-

- (a) two exterior rear view mirrors ;
- (b) head lamps with the head and dip beams and indicator ;
- (c) tail or stop lamp ;
- (d) side direction indicator lamp ;

- (e) reverse lamp ;
- (f) two interior lamp for driver compartment and passenger compartment ;
- (g) parking lamps ; and
- (g) horn

9. Where the motor tricycle is used for the purpose of carrying persons or goods for fee or reward

- (a) the owner or driver of the motor tricycle shall cause to be examined the motor tricycle annually after expiration of two years from the first registration for the issue of the fitness certificate under the provisions of Section 196 of the Motor Traffic Act and the effective date for issuance such certificate shall be declared by the Commissioner General
- (b) the following information shall be displayed behind the driver seat to be clearly visible to passengers -
 - (i) registration number ;
 - (ii) name and driving license number of the driver ;
 - (iii) a photograph of the driver (size : 65x50 millimeters)
 - (iv) telephone numbers of the respective police stations where the vehicle is registered to inform in the case of emergency
- (c) the driver of a motor tricycle shall—
 - (i) behave in a civil and orderly manner ;
 - (ii) not smoke ;
 - (iii) not terminate the hiring before he has been discharged by the hire ; and
 - (iv) carry passengers to their destinations by the shortest possible route within the shortest time unless otherwise requested by them.

at all the times while he is on duty.

10. (1) Every owner of a motor tricycle who uses such motor tricycle for the purpose of transportation of persons or goods for hire or otherwise shall fix a taximeter which shall be operational at all the time.

(2) Upon the payment of such fare, it shall be the duty of the driver of such motor tricycle to issue a receipt to that effect. Such receipt shall include the distance travelled, vehicle registration number, amount charged and date of receipt.

11. The driver of the motor tricycle shall, on completion of every journey, examine the motor tricycle for any article accidentally left therein by any passenger. If any article is found and it is not claimed immediately by the owner, the drivers shall, without undue delay take it to the nearest police station and deliver it to the officer in charge of such station and acknowledge receipt of such article.

12. (1) An owner of a motor tricycle shall ensure that no letters, figures or digits except descriptive information marked thereon by the manufacturer of the motor tricycle is marked on the front and rear of the motor tricycle.

13. The Motor Traffic (Motor Tricycle) Regulations No. 01 of 2013 published in *Gazette Extraordinary* No. 1821/31 of July 31, 2013 is hereby rescinded.

14. In these regulations “motor tricycle” shall have the same meaning as in the Motor Traffic Act (Chapter 203).